

1.

CASE #	CASE NAME	HEARING NAME
CVPS2404637	DAVIES VS AMERICAN HONDA MOTOR CO., INC.	MOTION FOR SUMMARY ADJUDICATION ON COMPLAINT OF TABITHA DAVIES BY AMERICAN HONDA MOTOR CO., INC.

Tentative Ruling: No tentative ruling. Hearing is continued to 12.03.26 pursuant to CCP 437c(h).

Jury trial is continued to 1.15.27.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2406355	ZENERGY CAPITAL LLC VS PALM SPRINGS CEMETERY DISTRICT	DEMURRER ON 1ST AMENDED COMPLAINT FOR FRAUD OF ZENERGY CAPITAL LLC BY PALM SPRINGS UNIFIED SCHOOL DISTRICT

Tentative Ruling: A demurrer tests the legal sufficiency of the pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*) The court disregards any factual assertions raised in the demurrer and reply papers that are not pled. Demurrers for uncertainty will only be sustained where the defendant cannot reasonably determine what issues must be admitted or denied, or what claims are directed against him. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Demurrers for uncertainty are to be overruled when addressed to inconsequential matters, the facts are within the knowledge of the defendant or ascertainable in discovery, or not dispositive of one or more causes of action. (*Id.*) Here, the complaint is not so uncertain such that Defendant does not understand the claims. The specific location of the easement can be determined during discovery.

4th Cause of Action Breach of Contract:

Under the Government Claims Act (the "Act"), a plaintiff bringing suit for monetary damages against a public entity or employees must first present a claim to the public entity ("government claim") which must be acted upon or deemed rejected by the public entity. (Gov. Code §§ 945.4, 950.2, 950.6(a).) It is an element of a cause of action against a public entity. (*Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 374.) The purpose is to provide sufficient information to the public entity to enable it to adequately investigate claims and settle, if appropriate, without the expense of litigation. (*Ibid.*) It is required irrespective of the public entity's actual knowledge of the circumstances. (*Ibid.*) A plaintiff must allege compliance, or an exception or excuse for non-compliance exists. (*Id.*)

The claim must be filed within 6 months of the accrual of the cause of action, or with leave to file a late claim, no later than one year. (Gov. Code, §§ 911.2, 911.4.) If a plaintiff fails to file a government claim within the 6 month period, he or she may apply to the public entity for permission to file a late claim. (Gov. Code, § 911.4.) Such an application must be presented within a reasonable time, and not later than one year after

the accrual of the cause of action. (Gov. Code, § 911.4(b).) If the claim against the public entity is barred, any claims against a public employee for injuries caused within the scope of employment are also barred. (Gov. Code, § 950.2.) Failure to plead compliance with the claims statute subjects the complaint to a demurrer. (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1239.)

Here, there is no allegation of compliance. Plaintiff argues that it is seeking relief other than damages. However, the FAC clearly seeks damages. (FAC ¶52.)

6th Cause of Action – Inverse Condemnation:

The California Constitution requires that just compensation be paid when private property is taken or damaged for public use. (California Constitution, Article 1, § 19; *Marshall v. Department of Water & Power* (1990) 219 Cal.App.3d 1124, 1138.) Inverse condemnation is brought by a property owner who contends that the government has taken or damaged his property. (*Boxer v. City of Beverly Hills* (2016) 246 Cal.App.4th 1212, 1218.) While in eminent domain actions brought by the government already establish a taking, in an inverse condemnation action, the property owner must establish that the public entity has taken or damaged his property, before deciding the issue of just compensation. (*Weiss v. People ex rel. Department of Transportation* (2018) 20 Cal.App.5th 1156, 1166-1167.) There are three types of takings: “(1) the property has been physically invaded in a tangible manner; (2) no physical invasion has occurred, but the property has been physically damaged; or (3) an intangible intrusion onto the property has occurred which has caused no damage to the property but places a burden on the property that is direct, substantial, and peculiar to the property itself.” (*Boxer*, supra, 246 Cal.App.4th at 1218.)

Defendant’s argument is that it is barred by the statute of limitations. A demurrer based on a statute of limitations defense must clearly and affirmatively show that the claim is barred. (*Lockley v. Law Office of Cantrell, Green, Kekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 881.) “It is not sufficient that the complaint might be barred.” (*Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 324.)

Inverse condemnation, when it is an action to recover for government acts causing “physical damage to private property” must be commenced within 3 years. (Code Civ. Proc. §338(j).) The cause of action accrues when the damage becomes manifest even if the property owner is unaware of the governmental agency’s involvement in causing the damage. (*Lyles v. State of Calif.* (2007) 153 Cal.App.4th 281, 286.) Here, there are no dates alleged, only the recording date of the easement, 6.27.12. (FAC ¶49.) Without a date of damage of the property, the FAC does not clearly demonstrate that the claim is barred by the statute of limitations.

However, Defendant points out that the FAC admits that the ownership of the property has been conveyed from District to County. (FAC ¶67.) Thus, it is unclear how Defendant District has taken or damaged the property if it no longer owns the property.

Defendant Palm Springs Unified School District Special Demurrer is OVERRULED.

Defendant Palm Springs United School District General Demurrer as to the 4th and 6th Causes of Action is SUSTAINED with leave to amend.

Plaintiff to file an amended complaint within 20 days.

Trial Setting Conference remains calendared for 11.18.26.